



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

FEB 22 1996

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10318
(SEVENTH REVISION)

EXPIRATION DATE: **January 31, 1998**

(FOR RENEWAL, SEE 49 CFR SECTION 107.105)

1. GRANTEE: Sonoco IBC,
Lavonia, GA.
2. PURPOSE AND LIMITATION: This exemption authorizes the manufacture, mark and sale, until September 30, 1996, of the nonreusable non-DOT specification blow molded, polyethylene portable tank enclosed in a steel frame described herein, for the shipment of hazardous materials listed in paragraph 6 below, and provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 173.242, 173.243 and Part 178, Subparts N and O, and Part 180, Subpart D.
5. BASIS: This exemption is based on the application of Sonoco IBC, dated July 27, 1995, submitted in accordance with 49 CFR 107.105.

*No Renewal
NOT Active*

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials authorized	Hazard Class/ Division	Identification Number	Packing Group
Class 8 liquids for which DOT-37M/2SL or DOT 37M/2U nonreusable containers are prescribed in 49 CFR Part 173, effective on September 30, 1991, and which have no secondary hazards and a vapor pressure of no greater than 14.7 psia at 130°F.	8	as applicable	as applicable
Hydrogen peroxide solution in water containing 52% or less hydrogen peroxide by weight.	5.1	as applicable	as applicable
Toluene diisocyanate, classed as Division 6.1.	6.1	UN2078	II
Vinyl chloroacetate, classed as Division 6.1.	6.1	UN2589	II
Hydrazine hydrate or hydrazine aqueous solutions, with not more than 64 percent, by mass, classed as Class 8 material.	8	as applicable	as applicable
Ethyl, isopropyl, and methyl alcohols and solutions thereof; class 3 liquids compatible with polyethylene which have no secondary hazards and have a flash point of 73°F. or higher; combustible liquids compatible with polyethylene; and other class 3 liquids which have been specifically identified to, and acknowledged in writing, by the Office of Hazardous Materials Exemptions and Approvals (OHMEA) prior to the first shipment.	3	as applicable	as applicable

7. PACKAGING & SAFETY CONTROL MEASURES.

a. Packaging prescribed is a nonreusable, non-DOT specification blow molded, polyethylene portable tank having a maximum water capacity of 1050 liters (275 US gallons) enclosed in an outer steel frame. Tanks equipped with top and bottom outlets are described on Sotralentz Drawings Nos. P3.01.25, dated December 21, 1989, and P43.005, dated March 4, 1987, covering the polyethylene unit, and P3.01.24, dated December 21, 1989, covering the wire frame enclosure. The tank is mounted on and secured to a pallet base. Minimum wall thickness of polyethylene container must be 2.0mm (0.078 inch), except at corners, where minimum thickness is 1.2mm (0.047 inch). The tank must be equipped with a pressure relief device set at not less than 3 psig and have a minimum venting capacity of 6,700 SCFH at 5 psig. If a fusible plug is used as the pressure relief device, it must function at a temperature no greater than 250°F and at a pressure less than the specified test pressure.

b. A prototype tank within the outer steel frame must be subjected to and satisfactorily withstand the drop test and hydrostatic pressure test prescribed in 49 CFR 178.19-7(a) except the hydrostatic pressure test may be at 14.5 psig in lieu of the 15 psig cited, the stacking test prescribed in 49 CFR 178.251-5(a)(2), and the vibration test prescribed in 49 CFR 178.253-5(a)(i). NOTE: References to 49 CFR Part 178 in this paragraph are regulations in effect on September 30, 1991.

c. Each portable tank must be capable of satisfactorily withstanding tests in paragraph b. above.

d. Each portable tank must possess the chemical and physical properties as reported to the OHMEA by the petitioner's letters dated January 29, 1990 and April 26, 1990.

e. Any changes in design, resin, or process methods must be approved by the OHMEA. Prototype test results for the tests required in paragraph 7.b. of this exemption must accompany any request for changes in design, resin, or process methods.

f. Portable tanks having any portion of their molded body or components repaired are not authorized.

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- f. Certification of the pressure relief device capacity must be submitted to the OHMEA prior to the first shipment.
 - g. Each packaging used to transport a material classed as a poison must be marked as specified in 49 CFR 173.24(d)(4).
 - h. For shipment by cargo vessel the portable tanks must be containerized.
 - i. Consistent with the regulations adopted under Docket HM-181E for intermediate bulk containers (IBCs), exemptions for IBCs of the type covered by those regulations will not allow new construction after September 30, 1996. Existing IBCs may be continued in service, **provided renewal provisions under 107.105 are met**, until September 30, 1998 under the conditions specified in the exemption that applies to their use. After September 30, 1998, each IBC must conform to, and be certified as meeting, a UN IBC standard set forth in Subparts N and O of Part 178 of the Hazardous Materials Regulations (HMR; 49 CFR). A provision for approval of an equivalent IBC is specified in 49 CFR 178.801(i).
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.
10. MODAL REQUIREMENTS: A copy of this exemption must be carried on board each cargo vessel used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq, when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

- g. Commodities must be compatible with the polyethylene (PE) portable tank, and may not permeate the PE to an extent that a hazardous condition could be caused during transportation and handling.
- h. The sides of each portable tank must be marked "KEEP THIS END UP" in two places, 180° apart, with an arrow pointing to the tank top.
- i. Portable tanks for hydrogen peroxide solution must have a vented closure to prevent accumulation of internal pressure.
- j. Portable tanks must always be filled and shipped in the outer steel frame as shown in Sotralentz drawing P3.01.24 dated December 21, 1989, included in petitioner's application.

8. SPECIAL PROVISIONS.

- a. Offerors for transportation of the hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.
- b. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 10318 and "NRC".
- c. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.
- d. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.
- e. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Administrator for Safety, Federal Railroad Administration. Portable tank may be shipped only in a railcar that provides specific facilities for bracing a tie down of the tanks.